



Unfair Use

“The danger of all this DRM mess: artists are irritating people like me—people who are willing to pay for their content, but just not so keen on being told how to use it”

AUDIOGALAXY AND Napster started it all; the powers that be in the entertainment industry need to end it. Piracy brought about lawsuits, billions of dollars apparently lost and stricter Digital Rights Management (DRM) rules. However, as usual, the rules have become stifling.

Apple's flavour of DRM is called FairPlay. It only allows you to play songs downloaded from iTunes on up to five PCs. Now why does Apple get to decide which computer(s) I listen to my music on? I upgrade my PC regularly. Then, over the last two years, I've switched between six computers—two at home, three at work and one laptop. But what I find most stupid about FairPlay is that I can load the same MP3 on to as many iPods as I want... So basically it restricts the number of PCs that can play a song, and yet allows unlimited transfers to the world's most popular portable music device? Genius! If I ever buy music from iTunes, you guys are all invited over to my place... don't forget to bring your iPods.

Confused? Don't worry, I'm just as messed up about this as you, as are the artists, recording companies, distribution conglomerates, and even the seeders on the torrent network. For example, I have a backup (in MP3 format) of the Van Halen *For Unlawful Carnal Knowledge* CD that I bought years ago. Now it's illegal for me to e-mail the MP3s to my sister, but apparently, it's OK for me to transfer it to her iPod. Right? Who knows—depends on how good your lawyer is, I suppose.

It's not just music. If I miss a TV show and the re-run is at some ungodly hour, what do I do? Download it from, shall we say, questionable sites? Apparently, that would be breaking the law. However, if I had a TV-Tuner card, it would be perfectly legal to record the episode and view it later. Shouldn't the bottom-line for what's legal or not be to allow me to watch (or listen to), without any hassles, content that I pay for? And yes, I *am* paying my monthly cable bills.

I've found myself gravitating to the musicians we're showcasing on our DVDs. Free music has its advantages: there are no hassles, I'm encouraged to share it with my friends, or even make Torrents and share them with the world, and I find no difference between the number of songs I have to listen through before I find one I like—90 per cent of the music out there, free or by grossly-overpaid “stars” isn't to my taste anyway. That's the danger of all this DRM mess: artists are irritating people like me—people who are willing to pay for their content, but just not so keen on being *told* how to use it. Digital music on my phone, PC, portable media player or portable hard drive has replaced my Walkman and CD player. I just want to enjoy my music and movies, so stop bugging me with buggy DRM policies and laws that have more holes in them than the cheese on the *Tom and Jerry* show.

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